

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

W.P. No. /2024 (LAQ)

BETWEEN

M/s. SEA CASTLE RESORTS PVT LTD.,

... Petitioner

AND

The State of Karnataka & Ors.

... Respondents

INDEX

SL.NO.	DESCRIPTION.	PAGES.
01	Synopsis.	1 – 3
02	Memorandum of Writ Petition.	4 – 13
03	Affidavit.	14
04	Annexure – 'A' : The Copy of Order dated 29-11-2022.	15 – 16
05	Annexure – 'B' : The Copy of Notification dated 29-11-2022 Published in Government Gazette.	17 – 20
06	Annexure – 'C' : The Copy of Notification dated 21-12-2022.	21 – 22
07	Annexure - 'D' : The Copy of Photographs Showing the Work Under Progress.	23 – 24
08	Annexure – 'E' : The Copy of Letter dated 28-10-2023.	25 – 26
09	Annexure – 'F' : The Copy of Letter dated 14-06-2024.	27 – 28
10	Vakalath.	29
11	The Copy of Certificate of Incorporation With Typed Copy.	30 – 31
12	I.A. No.1 : Application U/s. 151 of C.P.C. for Dispensation	32 – 33
13	Affidavit.	34

Bangalore.

Date: 10 -07-2024

(K.N.Mahabaleshwar Rao)

Advocate for Petitioners

1

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

W.P. No.

/2024 (LAQ)

BETWEEN

M/s. SEA CASTLE RESORTS PVT LTD.,

..Petitioner

AND

The State of Karnataka & Ors.

.. Respondents

SYNOPSIS

Dates	List of events
29-09-2021	The Government of Karnataka in order to acquire the land mentioned in the Schedule of the Writ Petition and other land for the benefit of Fishery Department issued Preliminary Notification dated. 29-09-2021 under S.11(1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013
29-11-2022	The Government of Karnataka issued declaration exercising power under S. 19(1) the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, declaring that land mentioned in the schedule are required for establishing Fishery Port.
21-12-2022	The Land Acquisition Officer and Assistant Commissioner issued notice under S. 19(2) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.
28-10-2023	The Petitioner gave letter requesting the Respondents to pay the compensation amount in respect of land acquired by them.

14-06-2024	The Petitioner gave one more letter requesting the Respondents to pay the compensation amount in respect of land acquired.
------------	--

BRIEF FACTS OF THE CASE :

(a) The Petitioner is the absolute owner of converted land bearing (a) Sy. No. 129/OP1, measuring 1 Acre 46 Cents, (b) Sy. No. 130/1, measuring 1 Acre 16 Cents, (c) Sy. No. 130/2p1, measuring 1 Acre 65 Cents, (d) Sy. No. 131/5, measuring 1 Acre 25 Cents Situated at Hejmady Village, Kapu Hobli, Kapu Taluk, Udupi District.

(b) The Government of Karnataka in order to acquire the above mentioned land for the benefit of Fishery Department issued Preliminary Notification dated. 29-09-2021 under S.11(1) of The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (Here in after in short referred to as 'Act') Subsequently, the Government of Karnataka issued declaration under S. 19(1) of the act by way order dated. 29-11-2022. The State Government has finally decided to acquire the Petitioner's land and other land totally measuring 12.20 Acres for establishing Fishery Port at Hejamadi Village, Udupi District. It is seen from the said order that entire cost of acquisition shall be deposited by the beneficiary of acquisition of the land. Further, State Government has also issued notification as required under S. 19(1) and 19(2) of the Act. The notification has been issued in clear violation of S.19 of the Act and mandatory requirement has not been followed.

(c). The petitioner submits concerned authority is entitle to take possession as per S.38 of the Act only after passing of the ward and after payment of the compensation amount for the acquired

land, the. Though, the final notification was passed as back as 29-11-2022, so far the compensation has not been paid to the petitioner. But, the authorities are now entered the possession of the land and commenced work. The petitioner in spite of search in the government website not able to find the Award or notification uploaded to the Government Website.

(d) The Petitioner wrote a letter dated 28-10-2023 to the Respondents No. 3 to 5 to pay compensation to them. But, the respondents have not paid any compensation for the acquire land inspite of letter dated 28-10-2023. However, without paying compensation the respondents started construction work. Therefore, the petitioner gave letter dated 14-06-2024 stating that they have not received compensation and demanded compensation amount immediately. It is specifically stated that officials have stated that the owners will receive compensation before commencing the work.

(e). The petitioner submits that without paying compensation the respondents are forcibly took possession and doing work in the land acquired, which is illegal and oppose to law and to the provisions of the act under which land has been acquired. Hence, this writ petition.

Place : Bangalore
Dated : 09-07-2024.

(K.N.Mahabaleshwara Rao)
Advocate for Petitioner.

IN THE HIGH COURT OF KARNATAKA AT BANGALORE**ORIGINAL JURISDICTION****W.P. No.****/2024 (LAQ)**

4

BETWEEN

M/s. SEA CASTLE RESORTS PVT LTD.,
Private Limited Company, registered under
The provision of Companies Act, 1956.
No. 587, Shubham, 2nd Cross,
12th Main, 4th Block, Koramangala
Bangalore- 560034,
Represented by its Director,
Sri. Sitaram Rai S/o Narayan Rai,
Aged 73 years.

...PETITIONER.**AND****1. THE STATE OF KARNATAKA.**

Revenue Department,
Vidhana Soudha,
(Land Acquisition 1 & 3)
Dr. Ambedkar Veedhi,
Bangalore - 560001.
By its Principal Secretary.

2. DEPARTMENT OF FISHERIES.

Government of Karnataka,
3rd Floor, Podium Block.
V.V.Tower, Dr. Ambedkar Veedhi,
Bangalore 56001 by its Director.

**3. THE LAND ACQUISITION OFFICE
AND ASSISTANT COMMISSIONER,**

Kundapura,
Udupi District,
Office of Assistant Commissioner,
Kundapura Sub Division,
Kundapur, Udupi District,
PIN: 576 201.

4. THE DEPUTY COMMISSIONER,

Udupi District, Udupi
PIN: 576 102.

5. THE TAHSILDAR,

Kapu Taluk,
Kapu, Udupi District,
PIN: 574 106.

...RESPONDENTS

**PETITION UNDER ARTICLES 226 & 227 OF THE
CONSTITUTION OF INDIA**

The Petitioners submits as follows:

1. The Petitioner is the absolute owner of converted land bearing (a) Sy. No. 129/OP1, measuring 1 Acre 46 Cents, (b) Sy. No. 130/1, measuring 1 Acre 16 Cents, (c) Sy. No. 130/2p1, measuring 1 Acre 65 Cents, (d) Sy. No. 131/5, measuring 1 Acre 25 Cents Situated at Hejmady Village, Kapu Hobli, Kapu Taluk, Udupi District. The Petitioner is a Private Limited Company and registered with registrar of companies under the companies act, 1956. The certificate of incorporation has been produced along with vakalath.

2. The Government of Karnataka issued Preliminary Notification dated. 29-09-2021 under S.11(1) of The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (Here in after in short referred to as 'Act') in order to acquire the above mentioned land along with other land for the purpose of establishment of Fishery Port by the Fishery Department. Subsequently, the Government of Karnataka issued order exercising power under S. 19(1) of the act by way order dated. 29-11-2022 declaring that land is required for establishing of Fishery Port. The copy of the Order dated. 29-11-2022 is herewith produced and marked as **ANNEXURE-A**. The State Government has finally decided to acquire the Petitioner's land and other land totally measuring 12.20 Acres for establishing Fishery Port at Hejamadi Village, Udupi District. It is seen from the order that entire cost of acquisition shall be deposited by the beneficiary of acquisition of land. Further, State Government has also issued notification as required under S. 19(1) and 19(2) of the Act. The copy of the Notification dated 29-11-2022

published in Government Gazette is herewith produced and marked as **ANNEXURE-B**. The Land Acquisition Officer and Assistant Commissioner issued declaration as required under S. 19(2) of the Act. The copy of the Notification dated 21-12-2022 is herewith produced and marked as **ANNEXURE-C**.

4. The petitioner submits that the concerned authority is entitled to take possession as per S.38 of the Act, after passing of the ward and after payment of the compensation amount for the acquired.

5. Though, the final notification was passed as back as 29-11-2022 so far the compensation has not been paid to the petitioners. But, the authorities are now entered the possession of the land and commenced work. The Photograph showing the work under progress are herewith produced and marked as **ANNEXURE-D**. The Petitioner submits that to their knowledge notification as required under S.38 of the Act has been issued. Further, necessary Award has not been passed as required under S. 23 and S.24 of the Act. It is submitted that all notifications and award would be uploaded to the Government Website. The petitioner is not able to find the Award or notification uploaded to the Government Website in spite of search in the government website.

6. Since the necessary compensation was not paid, the Petitioner wrote a letter dated 28-10-2023 to the Respondents No. 3 to 5 to pay compensation to them. The copy of the letter dated 28-10-2023 is herewith produced and marked as **ANNEXURE-E**. But, the respondents have not paid any compensation for the acquire land inspite of letter dated 28-10-2023. However, without paying compensation the respondents started construction work. Therefore, the petitioner have given letter dated 14-06-2024 stating that they have not received

7 compensation and demanded to pay compensation amount. It is specifically stated that officials have stated that the owners will receive compensation before commencing the work. Further, demanded compensation within 10 days. The copy of the letter dated 14-06-2024 is herewith produced and marked as **ANNEXURE-F.**

7. The petitioner submits that without paying compensation the respondents are not entitled for possession of the property acquired under the act. Since, in spite of final declaration under S. 19(2) of the Act dated 22-11-2022 so far even after one year eight months no amount was paid by them towards compensation. On the other hand, the Respondents are forcibly took possession and doing work in the acquired land, which is illegal and oppose to law and to the provisions of the act under which land has been acquired. The meeting was held in the office of Deputy Commissioner regarding acquisition of the land and payment of compensation amount. In the meeting it was decided that before taking possession of the land entire compensation would be paid to the owner/s of the land. But, so far no amount has been paid by the Respondents. Further, issue of declaration U/s. 19(2) of the Act is contrary to law and contrary to the provision of the Act.

8. The petitioner filing this writ petition without prejudice to challenge and question the amount of compensation and other monetary benefits including rate of interest liable to be paid by the Respondents to them for having acquired the land in question.

9. The Petitioner has not filed any other writ either before this Hon'ble Court or before any other Court on the same cause of action. The Petitioners have no other alternative remedy than to approach this Hon'ble Court in its Writ Jurisdiction under Article 226 and 227 of the Constitution of India.

10. A writ as prayed for may kindly be issued on the following grounds:-

GROUND

(i). The action of the Respondents in entering the land in question and doing works without paying compensation under the Act is illegal and amounts to encroachment of land of the petitioner. The Respondents have no legal authority to carryout any work in the land in question without paying compensation for the land acquired by them under the Act. The Respondents have no authority to carryout any work without taking physical possession of the land acquired in accordance with law after paying entire compensation amount to the owner.

(ii) Under S. 38 of the Act, the authority is entitle to take possession of the land only after ensuring that full payment of compensation are paid or tendered to the entitled person within a period of three months commencing from the date of the award made under S. 30 of the Act.

(iii) Under S. 37 of the Act, the authority will have to file award in the Collector's office and Collector is required to give notice immediately to all concerned person once award is filed. The details of the award is required to be uploaded in the Website created for the purpose for which land has been acquired. To the knowledge of petitioner no website has been created for this purpose and Award is not available in the State Government Website. Further, the office of the Deputy Commissioner Udipi and Land Acquisition Officer and Assistant Commissioner's office have not provided the copy of the award and not displayed the award in their office. To the knowledge of the Petitioner no award has been made by the concerned authorities under the Act.

9

(iv) Under S. 19 of the Act, the State Government before declaring the requirement of the land for the purpose for which notification was issued, the Requiring Body is required to deposit the amount in full or part towards the cost of the acquisition. Thus, no declaration shall be made by the Government unless amount is deposited towards the cost of acquisition. Further, Requiring Body is required to deposit amount promptly so as to enable the Government to issue necessary declaration. Further, the Government order dated. 29-11-2022 by way of declaration under S. 19(1) and 19(2) of the Act clearly states that before preparing E-Award the entire cost of acquisition should be deposited from the department for whose benefit land has been acquired. In fact as per proviso of S. 19(2) of the Act declaration under S. 19(1) of the Act can not be made unless amount is deposited by the Requiring Body ie. beneficiary of the acquisition. Thus, if the amount is not deposited as required under law, the entire declaration made under S.19(1) is bad in law consequently issue entire process of acquisition is bad in law. The deposit of amount is mandatory before issuing declaration U/s. 19(2) of the Act. The mandatory provision of the Act has not been complied with. The notification has been issued in clear violation of mandatory provision of the act in the matter of deposit of amount. The deposit of amount by the Requiring Body is a pre-condition to issue declaration under S. 19(1) of the Act. The State Government could not have issued declaration under S.19(1) of the Act without Requiring Body deposit the cost of acquisition. The Government order shows that amount has not been deposited at the time of issuing declaration.

(v) The petitioner is entitle for full payment of compensation and other benefits with interest on account of acquisition of the land belong to it. The land are converted land. That in spite of repeated demand and request by personal visit by the

representatives of the petitioner's company to the office of Deputy Commissioner Udupi and Assistant Commissioner so far there is no response from them. The Petitioners gave letter on 28-10-2023 and 14-06-2024 demanding for payment of the compensation and also objected for the work carried out in the land in question without paying compensation. The act of the Respondents in entering the land without paying compensation is oppose to law and also oppose to the provision of the act and right to enjoy the property given under the Constitution of India. The action of the respondents is clearly violative of provision of constitution of India as provided under Article 300A of the Constitution of India.

(vi) GROUNDS FOR INERIM RELIEF: The petitioner is intitle full payment of compensation and other benefits on account of acquisition of the land belong to it. The Petitioners gave letter on 28-10-2023 and 14-06-2024 demanding for payment of the compensation and also objected for the work carried out in the land in question without paying compensation. The act of the Respondents in entering the land without paying compensation is oppose to law and also oppose to the provision of the act. Since compensation amount was not paid though declaration was issued on 19-11-2022 and the authorities concerned are carrying work in the land, it is necessary to restrain from carrying any sort of work in the land mentioned in the schedule below. If the interim order as prayed for is not granted, the Petitioner will be put to untold hardship and injury. On the other hand no hardship will be caused to the Respondents if interim order as prayed for is granted.

8

PRAYER

Wherefore the Petitioner above named prays that this Hon'ble Court may be pleased to -

- (i) Issue a writ of certiorari or any other writ order or direction to quash the Declaration Dated 29-11-2022 bearing No. KAM.E.04 AQU 2021 (ANNEXURE-A) issued by the 1st Respondent under S. 19(1) of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 and Notification date. 29-11-2022 bearing No. KAM.E.04 AQU 2021(e) published in Government Gazette dated 19-12-2022 (ANNEXURE-B) issued by the 1st Respondent under S.19(1) and (2) of the Right to Fair Compensation. and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, in so far as it relates to the acquisition of schedule land belong to the petitioner and consequently declare that Acquisition proceedings in respect of schedule land is bad in law,

Or in the alternative

- (ii) Issue a writ in the nature of mandamus directing the Respondents to pay entire compensation amount and other monetary benefits with interest to the petitioner in respect of land acquired under the provisions of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.
- (iii) Grant an order of Injunction restraining the Respondents and their authorities or any other persons claiming through them from carrying any work on the Schedule Land mentioned below till payment of full compensation and other monetary benefits with interest under the provisions of the

Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

- (iv) Pass such other order or orders as may be deemed just and necessary in the facts and circumstances of the case.

INTERIM PRAYER

Pending disposal of the Writ Petition, the petitioner prays that this Hon'ble Court be pleased to grant an order of Temporary Injunction restraining the Respondents and their authorities and any other person claiming through Respondents from carrying work on the land mentioned Schedule below, in the interest of justice and equity.

SCHEDULE OF THE LAND ACQUIRED

ITEM NO.1. All that piece and parcel of the converted land bearing Sy. No. 129/OP1, measuring 1 Acre 46 Cents, Situated at Hejmady Village, Kapu Hobli, Kapu Taluk, Udupi District, having the following boundaries:-

North: Land bearing Sy. No. 195.
South: Land bearing Sy. No. 130/1
East: Land bearing Sy. No. 195.
West: Land bearing Sy. No. 129.

ITEM NO.2. All that piece and parcel of the converted land bearing Sy. No. 130/1, measuring 1 Acre 16 Cents, Situated at Hejmady Village, Kapu Hobli, Kapu Taluk, Udupi District, having the following boundaries:-

North: Land bearing Sy. No. 129
South: Land bearing Sy. No. 130/2
East: Land bearing Sy. No. 195.
West: Land bearing Sy. No. 130/1

13 **ITEM NO.3.** All that piece and parcel of the converted land bearing Sy. No. 130/2p1, measuring 1 Acre 65 Cents, Situated at Hejmady Village, Kapu Hobli, Kapu Taluk, Udupi District, having the following boundaries:-

North: Land bearing Sy. No. 130/1.

South: Land bearing Sy. No. 131/1

East: Land bearing Sy. No. 195.

West: Land bearing Sy. No. 130/2.

ITEM NO.4 All that piece and parcel of the converted land bearing Sy. No. 131/5, measuring 1 Acre 25 Cents Situated at Hejmady Village, Kapu Hobli, Kapu Taluk, Udupi District. having the following boundaries:-

North: Land bearing Sy. No. 131/1.

South: Land bearing Sy. No. 131/6 & 131/7.

East: Land bearing Sy. No. 195.

West: Land bearing Sy. No. 131/3 & 131/4.

Place : Bangalore

Dated : 09-07-2024

Address for service

K.N. Mahabaleshwara Rao,
Manjunatha Murtugudde,
Advocates, No.47, 6th Cross,
Sampige Road, Malleshwaram,
Bangalore 560 003.

(K.N. Mahabaleshwara Rao)

Advocate for Petitioner

M.N. 9844119953

14

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

W.P. No. /2024 (LAQ)

BETWEEN

M/s. SEA CASTLE RESORTS PVT LTD., ..Petitioner

AND

The State of Karnataka & Ors. .. Respondents

AFFIDAVIT

I, Sitaram Rai, S/o Narayan Rai, Aged 73 years, No. 587, Shubham, 2nd Cross, 12th Main, 4th Block, Koramangala, Bangalore- 560034, do hereby solemnly affirm and state as follows:-

1. I am the Director of the Petitioner's Company in the above case and I am acquainted with the facts of the case. I have been authorized to swear to this affidavit on behalf of Petitioner.

2. The statements made in paragraphs 1 to 10 of the petition accompanying this affidavit are true to my knowledge and I believe them to be true.

3. I state that Annexures 'A' to F produced are the true copies of the original

Place: Bangalore.

Dated: -07-2024.

Identified by me:

DEPONENT



ಕರ್ನಾಟಕ ಸರ್ಕಾರ

RPAD

Annex A 15

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ನಡವಳಿಗಳು

ವಿಷಯ:

ಮೀನುಗಾರಿಕಾ ಬಂದರು ನಿರ್ಮಾಣ ಯೋಜನೆಗೆ ಉಡುಪಿ ಜಿಲ್ಲೆ, ಕಾಪು ತಾಲ್ಲೂಕು, ಹೆಜಮಾಡಿ ಗ್ರಾಮದ ಸ.ನಂ.129/1 ಹಾಗೂ ಇತರಗಳಲ್ಲಿ 12-20-00 ಎಕರೆ ಜಮೀನನ್ನು ಸ್ವಾಧೀನಪಡಿಸುವ ಸಂಬಂಧ ಭೂಸ್ವಾಧೀನ ಪ್ರಕ್ರಿಯೆಯಲ್ಲಿ ಪಾರದರ್ಶಕತೆ ಮತ್ತು ಸೂಕ್ತ ಪರಿಹಾರದ ಹಕ್ಕು, ಪುನರ್ ವಸತಿ ಮತ್ತು ಪುನರ್ ನಿರ್ಮಾಣ ಕಾಯ್ದೆ-2013ರ ಕಲಂ-19(1)ರಡಿ ಅಂತಿಮ ಅಧಿಸೂಚನೆ ಹೊರಡಿಸುವ ಬಗ್ಗೆ.

ಓದಲಾಗಿದೆ:-

1. ಪ್ರಾಥಮಿಕ ಅಧಿಸೂಚನೆ ಕ್ರಮಾಂಕ:ಎಲ್‌ಎಕ್ಯೂ/ಸಿಆರ್ /01/2019-20/ಇ-40582, ದಿನಾಂಕ:29-09-2021.
2. ಸರ್ಕಾರದ ಪತ್ರ ಸಂಖ್ಯೆ: ಕಂಇ 04 ಎಕ್ಯೂಯು 2021, ದಿನಾಂಕ:10-02-2022.
3. ಸರ್ಕಾರದ ಪತ್ರ ಸಂಖ್ಯೆ: ಕಂಇ 04 ಎಕ್ಯೂಯು 2021, ದಿನಾಂಕ:29-11-2022.
4. ಜಿಲ್ಲಾಧಿಕಾರಿ, ಉಡುಪಿ ಜಿಲ್ಲೆ, ಇವರ ಪತ್ರ ಸಂಖ್ಯೆ: ಎಲ್‌ಎಕ್ಯೂ/ಸಿಆರ್/01/2019/ಇ-40852, ದಿನಾಂಕ:30-06-2022.

ಪ್ರಸ್ತಾವನೆ:-

ಮೇಲೆ ಓದಲಾದ ಕ್ರಮಸಂಖ್ಯೆ:(1)ರ ಕರ್ನಾಟಕ ರಾಜ್ಯ ಪತ್ರದಲ್ಲಿ ದಿನಾಂಕ:04-10-2021ರಂದು ಪ್ರಸ್ತಾಪಿತ ಯೋಜನೆಗೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ ಕಲಂ-11(1)ರ ಪ್ರಾಥಮಿಕ ಅಧಿಸೂಚನೆಯು ಪ್ರಕಟವಾಗಿರುತ್ತದೆ.

ಮೇಲೆ ಓದಲಾದ ಕ್ರಮಸಂಖ್ಯೆ: (2)ರಲ್ಲಿ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ ಕಲಂ-15(2)(3)ರಡಿ ಭೂಸ್ವಾಧೀನ ಪ್ರಕ್ರಿಯೆಯನ್ನು ಮುಂದುವರಿಸಲು ಸರ್ಕಾರದಿಂದ ನಿರ್ದೇಶನ ನೀಡಲಾಗಿರುತ್ತದೆ.

ಮೇಲೆ ಓದಲಾದ ಕ್ರಮಸಂಖ್ಯೆ: (3)ರಲ್ಲಿ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ ಕಲಂ-19(7)ರಡಿ ದಿನಾಂಕ:04-10-2022 ರಿಂದ 03-12-2022ರವರೆಗೆ ಕಾಲಾವಕಾಶವನ್ನು ವಿಸ್ತರಿಸಿ ಆದೇಶಿಸಲಾಗಿರುತ್ತದೆ.

ಮೇಲೆ ಓದಲಾದ ಕ್ರಮಸಂಖ್ಯೆ: (4)ರಲ್ಲಿ ದಿನಾಂಕ:30-06-2022ರ ಪತ್ರದಲ್ಲಿ ಜಿಲ್ಲಾಧಿಕಾರಿ, ಉಡುಪಿ ಜಿಲ್ಲೆ, ಕಾಪು ತಾಲ್ಲೂಕು, ಹೆಜಮಾಡಿ ಗ್ರಾಮದ ಸ.ನಂ.129/1 ಹಾಗೂ ಇತರಗಳಲ್ಲಿ 12-20-00 ಎಕರೆ ಜಮೀನನ್ನು ಮೀನುಗಾರಿಕಾ ಬಂದರು ನಿರ್ಮಾಣ ಯೋಜನೆಗೆ ಭೂಸ್ವಾಧೀನಪಡಿಸಲು ಕಲಂ-19(1)ರ ಅಧಿಸೂಚನೆಯ ಅನುಮೋದನೆ ನೀಡುವಂತೆ ಕೋರಿಕೆ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

ಹೊರಡಿಸಿದೆ
ದಿನಾಂಕ: 02/12/2022

16
ಸದರಿ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಕೂಲಂಕಷವಾಗಿ ಪರಿಶೀಲಿಸಿದೆ. ಭೂಸ್ವಾಧೀನ ಪ್ರಕ್ರಿಯೆಯಲ್ಲಿ ಪಾರದರ್ಶಕತೆ, ಸೂಕ್ತ ಪರಿಹಾರದ ಹಕ್ಕು, ಪುನರ್ವಸತಿ ಮತ್ತು ಪುನರ್ ನಿರ್ಮಾಣ ಕಾಯ್ದೆ-2013ರ ಕಲಂ-19ರಡಿ ಪ್ರದತ್ತವಾದ ಅಧಿಕಾರವನ್ನು ಚಲಾಯಿಸಿ, ಭೂಕೋರಿಕಾ ಸಂಸ್ಥೆಯ ಹಾಗೂ ಜಿಲ್ಲಾಧಿಕಾರಿ, ಉಡುಪಿ ಜಿಲ್ಲೆ ರವರ ಕೋರಿಕೆಯ ಮೇರೆಗೆ ಈ ಕೆಳಕಂಡಂತೆ ಆದೇಶಿಸಿದೆ.

**ಸರ್ಕಾರದ ಆದೇಶ ಸಂಖ್ಯೆ: ಕಂಇ 04 ಎಕ್ಸೂಯು 2021,
ಬೆಂಗಳೂರು ದಿನಾಂಕ:29-11-2022**

ಪ್ರಸ್ತಾವನೆಯಲ್ಲಿ ವಿವರಿಸಿರುವ ಅಂಶಗಳ ಹಿನ್ನೆಲೆಯಲ್ಲಿ, ಕಲಂ-21ರಡಿ ನೈಜ ಭೂಮಾಲೀಕರಿಗೆ ನೋಟೀಸ್ ನೀಡಿ ಮಾಲೀಕತ್ವದ ನೈಜತೆಯನ್ನು ಖಚಿತಪಡಿಸಿಕೊಂಡು ಐತೀರ್ಪು ರಚಿಸುವ ಷರತ್ತುಗಳೊಳಪಡಿಸಿ, ಮೀನುಗಾರಿಕಾ ಬಂದರು ನಿರ್ಮಾಣ ಯೋಜನೆಗೆ ಉಡುಪಿ ಜಿಲ್ಲೆ, ಕಾಪು ತಾಲ್ಲೂಕು, ಹೆಜಮಾಡಿ ಗ್ರಾಮದ ಸ.ನಂ.129/1 ಹಾಗೂ ಇತರಗಳಲ್ಲಿ 12-20-00 ಎಕರೆ ಜಮೀನನ್ನು ಸಾರ್ವಜನಿಕ ಹಿತದೃಷ್ಟಿಯಿಂದ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ-2013ರ ಕಲಂ-19(1) ಮತ್ತು 19(2)ರಡಿಯಲ್ಲಿನ ಅವಕಾಶದನ್ವಯ ಭೂಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳಲು ಆದೇಶಿಸಿದೆ.

ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ ಹಾಗೂ ಸಹಾಯಕ ಆಯುಕ್ತರು, ಕುಂದಾಪುರ ಉಪವಿಭಾಗ, ಕುಂದಾಪುರ ಇವರನ್ನು ಭೂಸ್ವಾಧೀನ ಅಧಿನಿಯಮ 3ನೇ ಪ್ರಕರಣ (ಜಿ) ಖಂಡದ ಮೇರೆಗೆ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಾರ್ಯವನ್ನು ನಿರ್ವಹಿಸಲು ನಿಯುಕ್ತಿಗೊಳಿಸಲಾಗಿದೆ. ಹಾಗೂ ಭೂಸ್ವಾಧೀನ ಪ್ರಕ್ರಿಯೆಗೆ ಒಳಪಡುವ ಸ್ವತ್ತುಗಳನ್ನು ಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳಲು ಆದೇಶಿಸುವ ಅಧಿಕಾರವನ್ನು ನೀಡಲಾಗಿದೆ. ಕರಡು ಐತೀರ್ಪು ರಚಿಸುವ ಮುನ್ನ ಭೂಸ್ವಾಧೀನ ವೆಚ್ಚದ ಪೂರ್ಣ ಮೊತ್ತವನ್ನು ಸಂಬಂಧಿಸಿದ ಭೂಕೋರಿಕಾ ಇಲಾಖೆಯಿಂದ ಭರಣ ಮಾಡಿಕೊಳ್ಳತಕ್ಕದ್ದು, ಹಾಗೂ ಈ ಹಿಂದೆ ಇದೇ ಜಮೀನುಗಳು ಭೂಸ್ವಾಧೀನವಾಗಿಲ್ಲವೆಂದು ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ಖಚಿತಪಡಿಸಿಕೊಂಡು ದೃಢೀಕರಿಸಿಕೊಳ್ಳತಕ್ಕದ್ದು.

ಮುಖ್ಯ ಪ್ರತಿಷ್ಠಾನ ಲಗತ್ತಿಸಿ

ಕರ್ನಾಟಕ ರಾಜ್ಯಪಾಲರ ಆಜ್ಞಾನುಸಾರ
ಮತ್ತು ಅವರ ಹೆಸರಿನಲ್ಲಿ,

29/11/22

(ಶ್ರೀನಿವಾಸ ಎ.)

ಸರ್ಕಾರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ,
ಕಂದಾಯ ಇಲಾಖೆ (ಭೂಸ್ವಾಧೀನ-1&3)

ಇವರಿಗೆ:

1. ಪ್ರಾದೇಶಿಕ ಆಯುಕ್ತರು, ಮೈಸೂರು ವಿಭಾಗ, ಮೈಸೂರು.
2. ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು, ಉಡುಪಿ ಜಿಲ್ಲೆ, ಉಡುಪಿ.
3. ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ ಹಾಗೂ ಸಹಾಯಕ ಆಯುಕ್ತರು, ಕುಂದಾಪುರ ಉಪವಿಭಾಗ, ಕುಂದಾಪುರ.
4. ಸರ್ಕಾರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿರವರ ಸಹಾಯಕರು, ಕಂದಾಯ ಇಲಾಖೆ, (ಭೂಸ್ವಾಧೀನ-1&3) ಇ-ಗೆಜೆಟ್‌ನಲ್ಲಿ ಅಪ್‌ಲೋಡ್ ಮಾಡಲು.
5. ಶಾಖಾ ರಕ್ಷಾ ಕಡತ.

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಕಂದಾಯ ಇಲಾಖೆ

ಭೂಸ್ವಾಧೀನ ಪ್ರಕ್ರಿಯೆಯಲ್ಲಿ ಪಾರದರ್ಶಕತೆ ಮತ್ತು ಸೂಕ್ತ ಪರಿಹಾರದ ಹಕ್ಕು, ಪುನರ್ವಸತಿ ಹಾಗೂ ಪುನರ್ನಿರ್ಮಾಣ ಕಾಯ್ದೆ-೨೦೧೩ರ ಕಲಂ-೧೯(೧) ಹಾಗೂ ೧೯(೨) ಮೇರೆಗೆ ಘೋಷಣೆ

ಸಂಖ್ಯೆ:ಕಂಇ ೦೪ ಎಕ್ಸಲ್ಯೂಯು ೨೦೨೧(ಇ)

ದಿನಾಂಕ:೨೯-೧೧-೨೦೨೨

ಇದರ ಅನುಸೂಚಿಯಲ್ಲಿ ನಿರ್ದಿಷ್ಟಪಡಿಸಿರುವ ಜಮೀನುಗಳು ಮೀನುಗಾರಿಕೆ ಬಂದರು ನಿರ್ಮಾಣಕ್ಕೆ ಕಾಪು ತಾಲೂಕು ಹೆಜಮಾಡಿ ಗ್ರಾಮದ ಕೆಲವು ಜಮೀನುಗಳು ಭೂಸ್ವಾಧೀನತೆಗೆ ಅಗತ್ಯವಾಗಿದೆ ಎಂದು, ಈ ಯೋಜನೆಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಭೂಸ್ವಾಧೀನಪಡಿಸುತ್ತಿರುವ ಜಮೀನುಗಳಿಗೆ ಕೇಂದ್ರ ಸರ್ಕಾರದ ಕಾಯ್ದೆ, ಭೂಸ್ವಾಧೀನ ಪ್ರಕ್ರಿಯೆಯಲ್ಲಿ ಪಾರದರ್ಶಕತೆ ಮತ್ತು ಸೂಕ್ತ ಪರಿಹಾರದ ಹಕ್ಕು, ಪುನರ್ವಸತಿ ಮತ್ತು ಪುನರ್ ನಿರ್ಮಾಣ ಕಾಯ್ದೆ-೨೦೧೩" (ಕೇಂದ್ರ ಅಧಿನಿಯಮ ಸಂಖ್ಯೆ:೩೦)ಕ್ಕೆ ಅನುಗುಣವಾಗಿ ಕರ್ನಾಟಕ ರಾಜ್ಯಕ್ಕೆ ಅನ್ವಹಿಸುವಂತೆ ದಿನಾಂಕ:೨೩-೦೭-೨೦೧೯ ರಿಂದ ಜಾರಿಗೆ ಬಂದಿರುವ ಭೂಸ್ವಾಧೀನ ಪ್ರಕ್ರಿಯೆಯಲ್ಲಿ ಪಾರದರ್ಶಕತೆ, ಸೂಕ್ತ ಪರಿಹಾರದ ಹಕ್ಕು, ಪುನರ್ವಸತಿ ಮತ್ತು ಪುನರ್ ನಿರ್ಮಾಣ (ಕರ್ನಾಟಕ ತಿದ್ದುಪಡಿ) ಕಾಯ್ದೆ-೨೦೧೯ (೨೦೧೯ರ ಕರ್ನಾಟಕ ಅಧಿನಿಯಮ ಸಂಖ್ಯೆ: ೧೬)ರ ಕಲಂ-೧೦(ಎ)ರಡಿ ಮೂಲ ಕಾಯ್ದೆಯ ಅಧ್ಯಾಯ-೧೧ ಮತ್ತು ೧೧ ರಲ್ಲಿನ ಉಪಬಂಧಗಳನ್ನು ಅನ್ವಯಿಸುವುದರಿಂದ ವಿನಾಯಿತಿ ನೀಡಿ ಸಂಖ್ಯೆ:ಆರ್. ೦೪ ಎಕ್ಸಲ್ಯೂಯು ೨೦೨೧ ದಿನಾಂಕ:೨೧-೦೪-೨೦೨೧ರಲ್ಲಿ ಅಧಿಸೂಚಿಸಿ ಪ್ರಕಟಿಸಿದಂತೆ, ಭೂಸ್ವಾಧೀನತೆ ಪ್ರಕ್ರಿಯೆಯಲ್ಲಿ ಪಾರದರ್ಶಕತೆ ಮತ್ತು ಸೂಕ್ತ ಪರಿಹಾರದ ಹಕ್ಕು, ಪುನರ್ವಸತಿ ಹಾಗೂ ಪುನರ್ ನಿರ್ಮಾಣ ಕಾಯ್ದೆ-೨೦೧೩ರ ಕಲಂ-೧೫ರನ್ವಯ ಯಾವುದೇ ಆಕ್ಷೇಪಣೆಗಳು ಸ್ವೀಕೃತವಾಗುವೇ ಇರುವುದರಿಂದ ಸದ್ಯ ಪ್ರಕರಣದಲ್ಲಿ ಮುಂದುವರೆಯಲು ಸರ್ಕಾರದ ಪತ್ರ ಸಂಖ್ಯೆ:ಕಂಇ ೦೪ ಎಕ್ಸಲ್ಯೂಯು ೨೦೨೧(ಇ) ದಿನಾಂಕ:೧೦-೦೨-೨೦೨೨ರಡಿ ಸರ್ಕಾರದ ನಿರ್ದೇಶನ ನೀಡಲಾಗಿದೆ.

ಭೂಸ್ವಾಧೀನತೆ ಪ್ರಕ್ರಿಯೆಯಲ್ಲಿ ಪಾರದರ್ಶಕತೆ ಮತ್ತು ಸೂಕ್ತ ಪರಿಹಾರದ ಹಕ್ಕು, ಪುನರ್ವಸತಿ ಹಾಗೂ ಪುನರ್ ನಿರ್ಮಾಣ ಕಾಯ್ದೆ-೨೦೧೩ರ ಕಲಂ-೧೯(೧)ರಡಿ ಕೆಳಗೆ ಸೂಚಿಸಿರುವ ಜಮೀನುಗಳನ್ನು ಸ್ವಾಧೀನ ಪಡಿಸಿಕೊಳ್ಳುವುದು ಅಗತ್ಯವಿದೆ ಎಂದು ಕರ್ನಾಟಕ ಸರ್ಕಾರಕ್ಕೆ ಮನವರಿಕೆಯಾಗಿರುವುದರಿಂದ, ಮೇಲೆ ತಿಳಿಸಿದ ಉದ್ದೇಶಕ್ಕಾಗಿ ಜಮೀನುಗಳು ಅಗತ್ಯವಾಗಿದೆ ಎಂದು ಸದ್ಯ ಅಧಿನಿಯಮ ೧೯(೧)ನೇ ಪ್ರಕರಣದ ಮೇರೆಗೆ ಈ ಮೂಲಕ ಘೋಷಿಸಲಾಗಿದೆ.

ಅದರಂತೆ ಸದ್ಯ ಭೂಸ್ವಾಧೀನ ಅಧಿನಿಯಮ ೩ನೇ ಪ್ರಕರಣ(ಜಿ) ಬಂಡದ ಮೇರೆಗೆ ಉಪವಿಭಾಗಾಧಿಕಾರಿಗಳು ಕುಂದಾಪುರ ಉಪವಿಭಾಗ, ಕುಂದಾಪುರ ಇವರನ್ನು ಸದ್ಯ ಜಮೀನುಗಳಲ್ಲಿ ಭೂಸ್ವಾಧೀನತೆಯ ಮುಂದಿನ ಎಲ್ಲಾ ಕಾನೂನು ಕ್ರಮ ಮತ್ತು ಕ್ರಿಯೆಗಳ ಕುರಿತಂತೆ ಜಿಲ್ಲಾಧಿಕಾರಿಯವರ ಪ್ರಕಾರ್ಯವನ್ನು ನಿರ್ವಹಿಸುವ ಸಲುವಾಗಿ ಈ ಮೂಲಕ ನೇಮಕ ಮಾಡಲಾಗಿದೆ. ಹಾಗೂ ಸದ್ಯ ಭೂಮಿಯ ಅರ್ಜನೆಗೆ ಸಂಬಂಧಿಸಿದ ಆದೇಶವನ್ನು ಪಡೆದುಕೊಳ್ಳಲು ಸದ್ಯ ಅಧಿನಿಯಮದ ೨೦ನೇ ಪ್ರಕರಣದ ಮೇರೆಗೆ ನಿರ್ದೇಶನ ನೀಡಲಾಗಿದೆ.

ಸರ್ಕಾರದ ಅಧಿಸೂಚನೆ ಸಂಖ್ಯೆ:ಆರ್. 04 ಎಕ್ಸೂಯು 2021 ದಿನಾಂಕ 21-04-2021 ರನ್ವಯ ಸದರಿ ಯೋಜನೆಗೆ 2013ರ ಮೂಲ ಕಾಯ್ದೆಯ ಅಧ್ಯಾಯ-11 ಮತ್ತು 111 ರಲ್ಲಿನ ಉಪಬಂಧಗಳನ್ನು ಅನ್ವಯಿಸುವುದರಿಂದ ವಿನಾಯಿತಿ ನೀಡಲಾಗಿರುವುದರಿಂದ 2013ರ ಮೂಲ ಕಾಯ್ದೆಯ ಅಧ್ಯಾಯ-11 ಮತ್ತು 111 ರಲ್ಲಿನ ಪುನರ್ರಚನೆ ಮತ್ತು ಪುನರ್ ನಿರ್ಮಾಣದ ಅವಕಾಶಗಳ ಬದಲಾಗಿ ನೀಡಲಾಗಿರುವ ಒಂದು ಇಡಿಗಂಟು ಮೊತ್ತವನ್ನು ಭೂಸ್ವಾಧೀನ ಪ್ರಕ್ರಿಯೆಯಲ್ಲಿ ಪಾರದರ್ಶಕ ಮತ್ತು ಸೂಕ್ತ ಪರಿಹಾರದ ಹಕ್ಕು, ಪುನರ್ವಸತಿ ಮತ್ತು ಪುನರ್ ನಿರ್ಮಾಣ (ಕರ್ನಾಟಕ ತಿದ್ದುಪಡಿ) ನಿಯಮಗಳು ಕಾಯ್ದೆ-2020ರ ನಿಯಮ 29(5)ರಂತೆ ನಿಗದಿಪಡಿಸಲು ತೀರ್ಮಾನಿಸಲಾಯಿತು.

ಈ ಮೇಲಿನ ಎಲ್ಲಾ ಅಂಶಗಳ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಸದ್ರಿ ಅಧಿನಿಯಮದ 21ನೇ ಪುರಕರಣದ (1)ರಡಿ ಸಂಬಂಧಿಸಿದ ಹಿತಾಸಕ್ತಿದಾರರಿಗೆ ಭೂಸ್ವಾಧೀನತೆಯ ಜಮೀನು ಕಬ್ಬಾ ಪಡೆಯುವ ಉದ್ದೇಶದ ಬಗ್ಗೆ ಹಾಗೂ ಪರಿಹಾರದ ಕ್ಷಮೆ ಸಲ್ಲಿಸಲು ತಿಳುವಳಿಕೆಯ ನೋಟೀಸು ನೀಡಿ ಮುಂದಿನ ಕ್ರಮ ಜರುಗಿಸಲು ನಿರ್ದೇಶಿಸಿದೆ.

ಸದ್ರಿ ಅಧಿಸೂಚನೆಯಂತೆ, ಭೂಸ್ವಾಧೀನತೆಗೊಳಪಡಿಸುವ ಕಾಪು ತಾಲೂಕಿನ ಹೆಜಮಾಡಿ ಗ್ರಾಮದ ಜಮೀನುಗಳ ವಿವರವನ್ನು ಸೂಚಿಸುವ ಒಂದು ನಕ್ಷೆಯನ್ನು ಮತ್ತು ಅಧಿಸೂಚನೆಯಲ್ಲಿ ಸಂಬಂಧಿಸಿದ ಎಲ್ಲಾ ಹಿತಾಸಕ್ತಿದಾರರ ಹಾಗೂ ಸಾರ್ವಜನಿಕ ಹಿತಾಸಕ್ತಿಗಾಗಿ ಅವಗಾಹನಗಾಗಿ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ ಮತ್ತು ಸಹಾಯಕ ಕಮೀಷನರ್ ಕುಂದಾಪುರ ಇವರ ಕಛೇರಿಯಲ್ಲಿ ಇಡಲಾಗಿದೆ.

ಜಿಲ್ಲೆ : ಉಡುಪಿ

ತಾಲೂಕು : ಕಾಪು

ಹೋಬಳಿ : ಕಾಪು

ಗ್ರಾಮ : ಹೆಜಮಾಡಿ

ಕ್ರ. ಸಂ.	ಹಿತಾಸಕ್ತಿ/ಇತರ ಹಿತಾಸಕ್ತಿದಾರರ ಹೆಸರು	ಸ.ನಂಬು	ತರಹೆ	ಚಕ್ಕುಬಂದಿ				ಭೂಸ್ವಾಧೀನ ವಿವರ		ಕಟ್ಟಡ/ಬಾವಿ/ಇತರ	ಗಿಡ/ಮರ
				ಉತ್ತರ	ದಕ್ಷಿಣ	ಪೂರ್ವ	ಪಶ್ಚಿಮ	ವಿಸ್ತೀರ್ಣ	ಮೌಲ್ಯ		
1	ಮೆ.ಸಿ. ಕಾಸ್ತೂರ್ ರೆಸೋರ್ಟ್, ಕಂಪ್ಲೆಕ್ಸ್	129/ಓಪಿ1	ಭೂಪ	195	130/1	195	129	1.46	ಭೂಪ	-	-
2	ಮೆ.ಸಿ. ಕಾಸ್ತೂರ್ ರೆಸೋರ್ಟ್, ಕಂಪ್ಲೆಕ್ಸ್, ಮಂಗಳೂರು	130/1	ಭೂಪ	129	130/2	195	130/1	1.16	16.46	-	-
3	ಮೆ.ಸಿ. ಕಾಸ್ತೂರ್ ರೆಸೋರ್ಟ್, ಕಂಪ್ಲೆಕ್ಸ್	130/2ಪಿ1	ಭೂಪ	130/1	131/1	195	130/2	1.65	ಭೂಪ	-	-
4	ವಿಜಯ ಎಸ್ ಕರ್ಕೇರ, ಬಿನ್ ದಿ. ಶೇಷಪ್ಪ ತಿಂಗಳಾಯ, ಭಾಸ್ಕರ ಎಸ್ ಕರ್ಕೇರಾ	131/1	ಭಾಗಾಯು	130/2	131/5	195	131/2	0.56	10.60	-	-

20

K.A.L. No. KARBIL/2001/47147 POSTAL REGN. No. RNP/KA/BGS/2202/2017-19
Licensed to post without prepayment WPP No. 297

ಭಾಗ ೬

ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರ, ಶುಕ್ರವಾರ, ೧೬, ಡಿಸೆಂಬರ್, ೨೦೧೭

೨೯೭೩

	ಫರೀದ್ ಶಾಹೀನ್ ಕೋಂ ಎಂ ಶಾಹೀದ್ ರಹಮಾನ್										
10	ಎಂ. ಶಾಹೀದ್ ರಹಮಾನ್ ಬಿನ್ ಅಬ್ದುಲ್ ರಹಮಾನ್, ಫರೀದ್ ಶಾಹೀನ್ ಕೋಂ ಎಂ ಶಾಹೀದ್ ರಹಮಾನ್	134/6	ಭಾಗಾ ಯ್ಯ	134/4	135/5ಬಿ	134/2	134/6	0.16	3.02	-	-
11	ಮೇಸರ್ಸ್ ಎಂ ಎಸ್ ಆರ್ ಹೋಲ್ಡಿಂಗ್ಸ್	132/1	ಭೂ.ಪ	131/7, 131/8	132/2, 132/3	132/3	ಅರಬ್ಬಿ ಸಮುದ್ರ	0.70	ಭೂ.ಪ	-	-
12	ಮೇಸರ್ಸ್ ಎಂ ಎಸ್ ಆರ್ ಹೋಲ್ಡಿಂಗ್ಸ್	132/2	ಭೂ.ಪ	132/1	132/5, 132/9ಸಿ	132/3	132/2	0.45	ಭೂ.ಪ		
13	ಮೇಸರ್ಸ್ ಎಂ ಎಸ್ ಆರ್ ಹೋಲ್ಡಿಂಗ್ಸ್	132/3	ಭೂ.ಪ	132/1, 131/6, 131/7	132/5, 132/4, 132/8	195	132/1, 132/2	2.03	ಭೂ.ಪ	-	-
14	ಕೃಷ್ಣಪ್ಪ, ಕುಸುಮ, ತಪ್ಪಲ ಪೂಜಾರಿ ಬಿನ್ ದಿ. ಪೂವ ಪೂಜಾರಿ ಮಕ್ಕಳು	132/6	ಬಾಗಾ ಯ್ಯ	132/5	133/1	132/4	132/7	0.26	4.92	-	-
15	ಕೃಷ್ಣಪ್ಪ, ಕುಸುಮ, ತಪ್ಪಲ ಪೂಜಾರಿ ಬಿನ್ ದಿ. ಪೂವ ಪೂಜಾರಿ ಮಕ್ಕಳು	132/7	ಭಾಗಾ ಯ್ಯ	132/9ಎ, 132/9ಸಿ, 132/5	133/4ಬಿ, 133/4ಎ	132/6	ಅರಬ್ಬಿ ಸಮುದ್ರ	0.58	10.98	-	-

ಕರ್ನಾಟಕ ರಾಜ್ಯಪಾಲರ ಆಜ್ಞಾನುಸಾರ
ಮತ್ತು ಅವರ ಹೆಸರಿನಲ್ಲಿ,

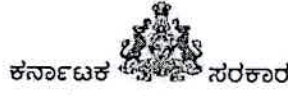
(ಶ್ರೀನಿವಾಸ ಎ.)

ಸರ್ಕಾರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ,
ಕಂದಾಯ ಇಲಾಖೆ (ಭೂಸ್ವಾಧೀನ-1&3)

PR-874

ಮುದ್ರಣದ ಹಾಗೂ ಪ್ರಕಾಶನ:- ಸಂಶಲನಾಧಿಕಾರಿಗಳು, ಕರ್ನಾಟಕ ರಾಜ್ಯಪತ್ರ, ಸರ್ಕಾರಿ ಕೇಂದ್ರ ಮುದ್ರಣಾಲಯ, ಬೆಂಗಳೂರು-೫೯.

SUNIL GARDE



ಕರ್ನಾಟಕ ಸರ್ಕಾರ

(ಕಂದಾಯ ಇಲಾಖೆ)

ಭೂ ಸ್ವಾಧೀನಾಧಿಕಾರಿ ಮತ್ತು ಸಹಾಯಕ ಕಮೀಷನರವರ ಕಛೇರಿ, ಕುಂದಾಪುರ ಉಪವಿಭಾಗ, ಕುಂದಾಪುರ.

ದೂರವಾಣಿ : 08254-231984

ಫ್ಯಾಕ್ಸ್ : 08254-231984

ಇಮೇಲ್ ವಿಳಾಸ : ackundapur@gmail.com

ಎಲ್‌ಎಕ್ಯೂ ಎಸ್‌ಆರ್ 04/2020-21

ದಿನಾಂಕ 21-12-2022

ಭೂಸ್ವಾಧೀನ ಪ್ರಕ್ರಿಯೆಯಲ್ಲಿ ಪಾರದರ್ಶಕ ಮತ್ತು ಸೂಕ್ತ ಪರಿಹಾರದ ಹಕ್ಕು, ಪುನರ್‌ವಸತಿ ಮತ್ತು ಪುನರ್‌ನಿರ್ಮಾಣ ಕಾಯ್ದೆ 2013ರ ಭೂಸ್ವಾಧೀನ ಅಧಿನಿಯಮದ ಕಲಂ 19(2)ರನ್ವಯ ಸಾರ್ವಜನಿಕ ನೋಟೀಸು

ಭಾರತ ಸರ್ಕಾರವು "The Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation And Resettlement Act - 2013" ನ್ನು ದಿನಾಂಕ 01-01-2014 ರಂದು ಜಾರಿಗೆ ಬಂದಿರುವುದರಿಂದ ಈ ಹಿಂದಿನ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 1894 ನಿರಶನಗೊಂಡಿರುತ್ತದೆ. ಭೂಸ್ವಾಧೀನ ಅಧಿನಿಯಮ (2013ನೇ ಕೇಂದ್ರ ಅಧಿನಿಯಮ) ಕಲಂ 11(1)ರನ್ವಯ ಉಡುಪಿ ಜಿಲ್ಲಾಧಿಕಾರಿಯವರ ಪ್ರಕಟಣೆ ನಂ.ಬ್ರ ಎಲ್‌ಎಕ್ಯೂ/ಸಿಆರ್/01/2019/ಇ-40582 ದಿನಾಂಕ 29-09-2021 ರಲ್ಲಿ ಈ ಕೆಳಗೆ ಕಾಣಿಸಿದ ಜಮೀನುಗಳು ಒಂದು ಸಾರ್ವಜನಿಕ ಉದ್ದೇಶಕ್ಕಾಗಿ ಅಂದರೆ ಮೀನುಗಾರಿಕೆ ಬಂದರು ನಿರ್ಮಾಣಕ್ಕೆ ಅಗತ್ಯವಾಗಿದೆ ಎಂದು ಪ್ರಕಟಿಸಿದ್ದು, ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ -2013ರ ಕಲಂ 19(1) ರನ್ವಯ ಉಡುಪಿ ಜಿಲ್ಲಾಧಿಕಾರಿಯವರು ಸಲ್ಲಿಸಿದ ವರದಿಯಿಂದ ಕರ್ನಾಟಕ ಸರ್ಕಾರಕ್ಕೆ ತೃಪ್ತಿಯಾಗಿ ಸದರಿ ಜಮೀನುಗಳು ಮೇಲೆ ಕಾಣಿಸಿದ ಉದ್ದೇಶಕ್ಕೆ ಅಗತ್ಯವಾಗಿದೆ ಎಂದು ಸದ್ರಿ ಕಾಯ್ದೆಯ ಸೆಕ್ಷನ್ 19(1) ರನ್ವಯ ಸರ್ಕಾರದ ಆದೇಶ ಸಂಖ್ಯೆ ಕಂಇ 04 ಎಕ್ಯೂಯು - 2021 ದಿನಾಂಕ 29-11-2022 ರಲ್ಲಿ ಘೋಷಣೆಯನ್ನು ನೀಡಲಾಗಿದೆ. ಸದ್ರಿ ಘೋಷಣೆಯ ಪ್ರಕಟಣೆಯ ದಿನಾಂಕ 16-12-2022 ರ ಕರ್ನಾಟಕ ರಾಜ್ಯ ಪತ್ರದ ಭಾಗ 6 ಯಲ್ಲಿ ಪುಟ ಸಂಖ್ಯೆ 2970 ರಿಂದ 2973 ರಲ್ಲಿ ಪ್ರಕಟವಾಗಿರುತ್ತದೆ.

ಸದರಿ ಭೂಸ್ವಾಧೀನ ಅಧಿನಿಯಮ 3ನೇ ಪ್ರಕರಣ (ಜಿ) ಖಂಡದ ಮೇರೆಗೆ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ ಮತ್ತು ಸಹಾಯಕ ಕಮೀಷನರ್ ಕುಂದಾಪುರ ಇವರನ್ನು ಸದ್ರಿ ಜಮೀನಿನಲ್ಲಿ ಮುಂದಿನ ಎಲ್ಲಾ ಕಾನೂನು ಕ್ರಮಗಳನ್ನು ತೆಗೆದುಕೊಳ್ಳಲು ಜಿಲ್ಲಾಧಿಕಾರಿಯವರ ಪ್ರಕಾರ ಈ ಕಾರ್ಯಗಳನ್ನು ನಿರ್ವಹಿಸುವಂತೆ ಈ ಮೂಲಕ ನಿಯಮಿಸಲಾಗಿದೆ. ಜಮೀನಿನ ಅಧೀಕೃತ ಸಂಗ್ರಹಣೆಗಾಗಿ ಆದೇಶಗಳನ್ನು ಪಡೆಯುವಂತೆ ಸದರಿ ಅಧಿನಿಯಮ ಪ್ರಕರಣ 20 ರ ಮೇರೆಗೆ ನಿರ್ದೇಶಿಸಲಾಗಿದೆ.

19(1)ರ ಅಡಿಯಲ್ಲಿ ಸೂಚಿಸಿದಂತೆ 15(2)ರನ್ವಯ 15(1) ರ ನಿಗದಿತ ನಮೂನೆಯಲ್ಲಿ ಆಕ್ಷೇಪಣೆಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಸರ್ಕಾರದ ಆದೇಶ ಸಂಖ್ಯೆ ಕಂಇ 04 ಎಕ್ಯೂಯು 2021 ದಿನಾಂಕ 10-02-2022 ರಂತೆ ನಿರ್ದೇಶನ ಪಡೆಯಲಾಗಿದೆ. ಸದ್ರಿ ಅಧಿನಿಯಮ ಕಲಂ 18ರನ್ವಯ ಪುನರ್‌ವಸತಿ, ಪುನರ್ ವ್ಯವಸ್ಥೆಯ ಸಾರಾಂಶ ಅನುಮೋದಿತ ಕರಡು ಯಾದಿಯನ್ನು ಕಲಂ 19(2)ರನ್ವಯ ಘೋಷಿಸಲಾಗಿದೆ.

ಸದ್ರಿ ಜಮೀನಿನ ವಿವರವನ್ನು ಸೂಚಿಸುವ ಒಂದು ನಕ್ಷೆಯನ್ನು ಸಾರ್ವಜನಿಕರ ಮಾಹಿತಿಗಾಗಿ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿ ಮತ್ತು ಸಹಾಯಕ ಕಮೀಷನರ್ ಕುಂದಾಪುರ ಇವರ ಕಛೇರಿಯಲ್ಲಿ ಇಡಲಾಗಿದೆ.

ಜಿಲ್ಲೆ : ಉಡುಪಿ

ತಾಲೂಕು : ಕಾಪು

ಹೋಬಳಿ : ಕಾಪು

ಗ್ರಾಮ : ಹೆಜಮಾಡಿ

ಕ್ರ.ಸಂ	ಖಾತೆದಾರರ ಹೆಸರು	ಸ.ನಂ.ಬ್ರ	ಜಮೀನಿನ ತರಹ	ಭೂಸ್ವಾಧೀನ ವಿವರ	
				ವಿಸ್ತೀರ್ಣ (ಎ-ಸೆ)	ಆಕಾರ
1	ಮೆ.ಸಿ ಕಾಸ್ತೆಲ್ ರಿಸೋರ್ಸ್, ಕಂ ಪ್ಯಾಲೇ	129/ಓಪಿ1	ಭೂ.ಪ	1.46	-
2	ಮೆ.ಸಿ ಕಾಸ್ತೆಲ್ ರಿಸೋರ್ಸ್, ಕಂ ಪ್ಯಾಲೇ. ಮಂಗಳೂರು	130/1	ಭೂ.ಪ	1.16	16.46
3	ಮೆ.ಸಿ ಕಾಸ್ತೆಲ್ ರಿಸೋರ್ಸ್, ಕಂ ಪ್ಯಾಲೇ	130/2ಪಿ1	ಭೂ.ಪ	1.65	-
4	ವಿಜಯ ಎಸ್ ಕರ್ಕೇರ, ಬಿನ್ ದಿ. ಶೇಷಪ್ಪ ತಿಂಗಳಾಯ, ಭಾಸ್ಕರ ಎಸ್ ಕರ್ಕೇರಾ ಬಿನ್ ದಿ. ಶೇಷಪ್ಪ ತಿಂಗಳಾಯ, ಶಾರದ ಪಿ. ಕುಂದರ್ ಬಿನ್ ದಿ. ಶೇಷಪ್ಪ ತಿಂಗಳಾಯ, ಶಾಂತ ಕೆ. ಕೊಟ್ಟಾನ್ ಬಿನ್ ದಿ. ಶೇಷಪ್ಪ ತಿಂಗಳಾಯ, ಶೇಖರ ಎಸ್ ಕರ್ಕೇರ ಬಿನ್ ದಿ. ಶೇಷಪ್ಪ ತಿಂಗಳಾಯ, ಸುಲೋಚನಾ ಎಸ್ ಕೊಟ್ಟಾನ್ ಬಿನ್ ದಿ. ಶೇಷಪ್ಪ ತಿಂಗಳಾಯ, ಜನುಶ್ರೀ ಪಿ. ಕಾಂಚನ್ ಬಿನ್ ದಿ. ಶೇಷಪ್ಪ ತಿಂಗಳಾಯ, (ಓ.ಎಸ್ ನಂ.ಬ್ರ 382/2013 ರಂತೆ ಕೋರ್ಟು ದಾವೆ ಇದೆ)	131/1	ಭಾಗಾಯ್ತು	0.56	10.60
5	ಮೆ.ಸಿ ಕಾಸ್ತೆಲ್ ರಿಸೋರ್ಸ್, ಕಂ ಪ್ಯಾಲೇ, ಮಂಗಳೂರು	131/5	ಭೂ.ಪ	1.25	23.65
6	ಮಸೂದ್ ಎಜ್ಜುಕೇಶನಲ್ ಆ್ಯಂಡ್ ಚಾರಿಟೇಬಲ್ ಟ್ರಸ್ಟ್ (ರಿ)	131/6	ಭೂ.ಪ	0.26	-
7	ಎಂ. ಶಾಹೀದ್ ರಹಮಾನ್ ಬಿನ್ ಅಬ್ದುಲ್ ರಹಮಾನ್, ಫರೀದ ಶಾಹೀನ್ ಕೋಂ ಎಂ ಶಾಹೀದ್ ರಹಮಾನ್	131/7	ಭಾಗಾಯ್ತು	0.24	4.55
8	ಎಂ. ಶಾಹೀದ್ ರಹಮಾನ್ ಬಿನ್ ಅಬ್ದುಲ್ ರಹಮಾನ್, ಫರೀದ	135/5ಬಿ	ಭಾಗಾಯ್ತು	0.34	3.93

21

	ಶಾಹೀನ್ ಕೋಂ ಎಂ ಶಾಹೀದ್ ರಹಮಾನ್				
9	ಎಂ. ಶಾಹೀದ್ ರಹಮಾನ್ ಬಿನ್ ಅಬ್ದುಲ್ ರಹಮಾನ್, ಫರೀದ ಶಾಹೀನ್ ಕೋಂ ಎಂ ಶಾಹೀದ್ ರಹಮಾನ್	132/4	ಬಾಗಾಯ್ತು	1.10	20.82
10	ಎಂ. ಶಾಹೀದ್ ರಹಮಾನ್ ಬಿನ್ ಅಬ್ದುಲ್ ರಹಮಾನ್, ಫರೀದ ಶಾಹೀನ್ ಕೋಂ ಎಂ ಶಾಹೀದ್ ರಹಮಾನ್	134/6	ಭಾಗಾಯ್ತು	0.16	3.02
11	ಮೇಸರ್ಸ್ ಎಂ ಎಸ್ ಆರ್ ಹೋಲ್ಡಿಂಗ್ಸ್	132/1	ಭೂ.ಪ	0.70	-
12	ಮೇಸರ್ಸ್ ಎಂ ಎಸ್ ಆರ್ ಹೋಲ್ಡಿಂಗ್ಸ್	132/2	ಭೂ.ಪ	0.45	-
13	ಮೇಸರ್ಸ್ ಎಂ ಎಸ್ ಆರ್ ಹೋಲ್ಡಿಂಗ್ಸ್	132/3	ಭೂ.ಪ	2.03	-
14	ಕೃಷ್ಣಪ್ಪ, ಕುಸುಮ, ತಪ್ಪಲ ಪೂಜಾರಿ ಬಿನ್ ದಿ. ಪೂವ ಪೂಜಾರಿ ಮಕ್ಕಳು	132/6	ಬಾಗಾಯ್ತು	0.26	4.92
15	ಕೃಷ್ಣಪ್ಪ, ಕುಸುಮ, ತಪ್ಪಲ ಪೂಜಾರಿ ಬಿನ್ ದಿ. ಪೂವ ಪೂಜಾರಿ ಮಕ್ಕಳು	132/7	ಭಾಗಾಯ್ತು	0.58	10.98



(ರಾಜು.ಕೆ)

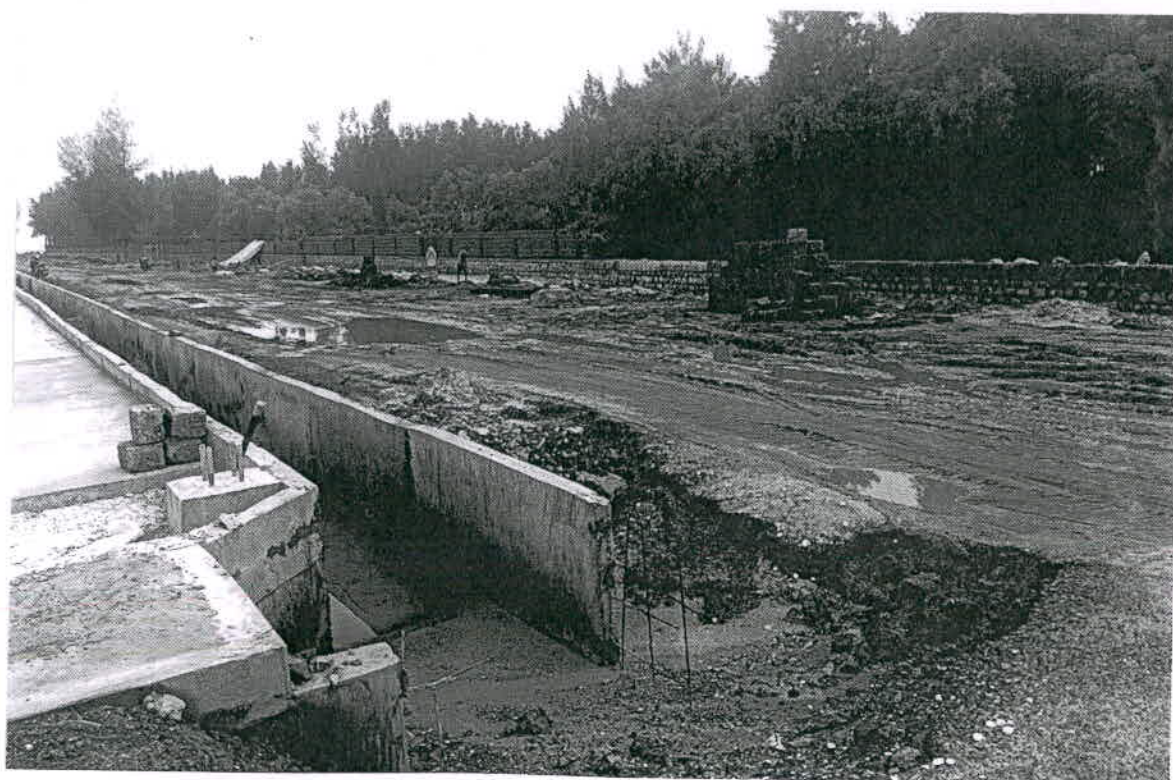
ಭೂ ಸ್ವಾಧೀನಾಧಿಕಾರಿ ಮತ್ತು
ಸಹಾಯಕ ಕಮೀಷನರ್, ಕುಂದಾಪುರ

Amc: D.

23



24



Sea Castle Resorts Pvt. Ltd.

Ann E
25

DATE: 28-10-2023

Ref:

TO:-

**1. THE DEPUTY COMMISSIONER,
Udupi District,
Udupi.**

**2. OFFICE OF THE LAND ACQUISITION OFFICER
AND ASSISTANT COMMISSIONER,
Kundapura Division,
Kundapura.**

**3. THE TAHSILDAR,
Kapu Taluk, Kapu,
Udupi District.**

M/s. SEA CASTLE RESORTS PRIVATE LIMITED, A registered company having its office at No.587, Shubham 12th Main, 2nd Cross, 4th Block, Koramangala, Bangalore, Rep by its Director

Mr. Seetharam N Rai, I write to inform you as follows as a second reminder Notice:-

2. We are absolute owner of the Converted property bearing 1) Survey No.129/1, measuring 1 Acre 46 Cents, 2) Survey No. 130/1, measuring 1 Acre 16 Cents, 3) Survey No.130/2P1, measuring 1 Acre 65 Cents, 4) Survey No. 131/5, measuring 1 Acre 25 Cents. all the properties are situated at Hejmady Village , Kapu Hobli, Kapu Taluk, Udupi District and the owners of the said land and the said land was purchased by us from its erstwhile owners in the year 1998 and from the date of purchase we are in peaceful possession and enjoyment of the said properties by getting revenue records transferred to their names and as on today the revenue records in respect of the said property is reflecting in the name of Sea Castle Resorts

Sea Castle Resorts Pvt. Ltd.

26

3. Such being the situation some of the officials of your office have came near the said properties in the month of November 2018 and looking over the property and at that time we questioned them about the same and at that time officials of your office has told that above said properties are going to be acquired by government for the formation of fishing port but they have not shown any documents to us and not issued any letter/s, notices to us.

4. Later February 2022 , we have visited the office and inquired about the same and at that time we came to know that the said lands have been acquired by government for fishing port by its order dated-29/09/2021 and at your office the officials have told us that we will receive the notice with regard to the same but as on today no intimation has been received by us with regard to the same and we have sent a letter to all of your departments stating that if the land was acquired by government for the above said purpose we will be ready to hand over the said lands if we get a fair market rate compensation, but for the said letter also we have not received any reply or response from your authority.

5. When we visited to the said lands during March 2023, we were shocked and surprised to see that your authority officials have started the work in the above said property of ours without intimating the same to us and without paying any compensation to us and we immediately rushed to your office and enquire about the same and at that time at your office informed us that file has been sent for award. The said act of your authority without any notice to us is illegal and high handed.

6. We have already sent a notice dt- 28/04/2023 but you have not complied the request of ours and these circumstances, through this notice once again, we are requesting your authority to not proceed with any construction /development work until the disbursement of compensation for the above said property Or else we are constrained to take appropriate legal action to stop the work going on our land.

Regards,

Mr. Seetharam N. Rai

(For SEA CASTLE RESORTS Pvt. Ltd.)

Sea Castle Resorts Pvt. Ltd.

Date : 14-06-2024

REF. - With reference to letter sent on 28-10-2023.

From,

M/s. SEA CASTLE RESORTS PRIVATE LIMITED,
#587, Shubham 12th Main, 2nd Cross,
4th Block, Koramangala, Bangalore – 560034.

To,

~~OFFICE OF~~ THE LAND ACQUISITION OFFICER,
~~AND~~ ASSISTANT COMMISSIONER,
Kundapura Division,
Kundapura.

Respected Sir.

Subject : Acquisition of our property by the Government without paying us.

We are absolute owner of the Converted property bearing 1) Survey No.129/1, measuring 1 Acre 46 Cents, 2) Survey No. 130/1, measuring 1 Acre 16 Cents, 3) Survey No.130/2P1, measuring 1 Acre 65 Cents, 4) Survey No. 131/5, measuring 1 Acre 25 Cents, all the properties are situated at Hejmady Village , Kapu Hobli, Kapu Taluk, Udupi District and the owners of the said land and the said land was purchased by us from its erstwhile owners in the year 1998 and from the date of purchase we are in peaceful possession and enjoyment of the said properties by getting revenue records transferred to their names and as on today the revenue records in respect of the said property is reflecting in the name of Sea Castle Resorts Pvt. Ltd.

This letter is another reminder for the payment we were supposed to receive by the Government for acquiring our property (details mentioned above). We have not received a compensation (payment) that is due to us for a while now.

We were promised by the officers (In November 2018) that we would receive the payment for the land before the government started the work, which is going on in full swing at the moment. Yet we haven't received a payment for the acquired property.

Even after repeated attempts to contact your office for payments, it was all in vain.

Hence, if we do not receive the payment promised to us within 10 days (24-06-2024) of this letter sent to your office (letter dt. 14-06-2024), we will be forced to stop all the work on our property by going to court and getting a stay order for the same.

We have attached the previous letter for your reference.

Kindly do the needful at the earliest.

Regards


Mr. Seetharam N. Rai

(For SEA CASTLE RESORTS PVT. LTD.)

CC- Deputy Commissioner, Udupi